

HOUSE No. 1397

The Commonwealth of Massachusetts

PRESENTED BY:

James J. O'Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act addressing unfair business practices in health care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>1/15/2025</i>

HOUSE No. 1397

By Representative O'Day of West Boylston, a petition (accompanied by bill, House, No. 1397)
of James J. O'Day relative to business practices in health care. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act addressing unfair business practices in health care.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority
of the same, as follows:*

1 SECTION 1. Chapter 111 of the General Laws is hereby amended after section 244 by
2 adding the following section:

3 Section 255. (a) A provider of health care services owned by a private equity company as
4 defined by section 1 of chapter 6D, and licensed by the department that has refused to negotiate
5 in good faith to provide contracted services to a public or private payer shall not seek payment
6 from that payer for a non-contracted service in excess of 200 percent of the payer's average
7 contracted reimbursement rate for that service.

8 (b) A violation of this section shall be an unfair or deceptive act or practice under chapter
9 93A.